UPSC INDIAN POLITY

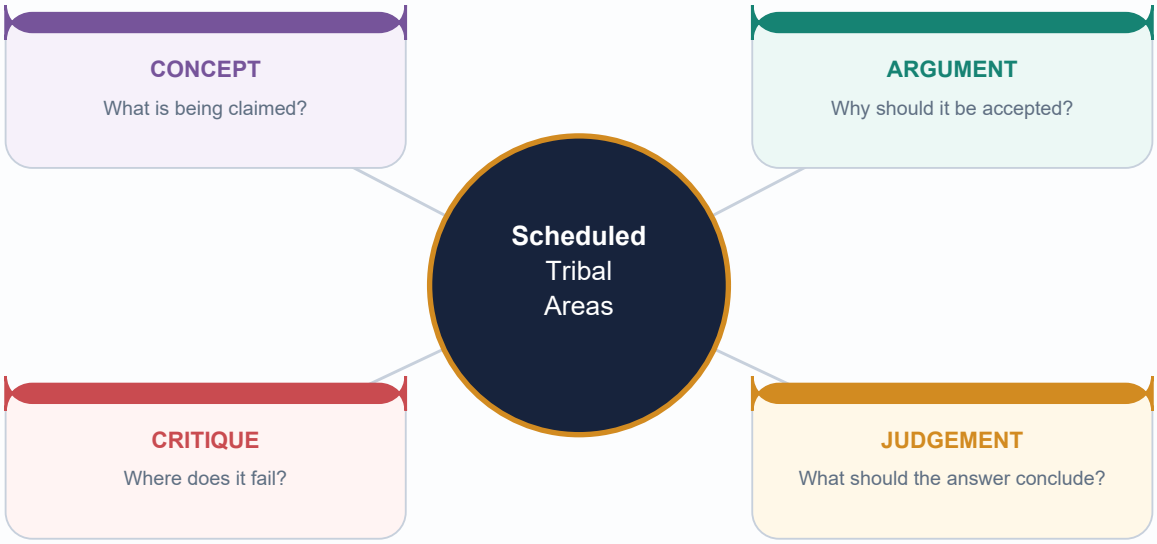
Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE Deep-Learning Visual Notes

Indian Polity · GS Paper II · Prelims + Mains

Layer 1: Basic foundation · Layer 2: Advanced constitutional and exam depth

Sources: Scheduled-and-Tribal-Areas.md + 26_Scheduled-and-Tribal-Areas.md

Learning cards: 38



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

Foundation · Core Foundation

GS-II Indian Polity

INTRO & ORIGIN

Subject: Polity · **Tier:** Basic (foundation) · **GS-II**

Foundation learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- □ = from book · □ = current link · □ = mnemonic. *Advanced: optional deeper detail in advanced/26_Scheduled-and-Tribal-Areas.md — not required for any mark.*

MEMORY HOOK

□ = from book · □ = current link · = mnemonic. *Advanced: optional deeper detail in advanced/26_Scheduled-and-Tribal-Areas.md — not required for any mark.*

MUST-KNOW FACTS

1. = from book · □ = current link · □ = mnemonic. *Advanced: optional deeper detail in advanced/26_Scheduled-and-Tribal-Areas.md — not required for any mark.*

MAINS ANGLE

STUDY LINK

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → Core Foundation

HIGH

Foundation · Snapshot

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Item	Fact
Article / Part	**Art 244**, Part **X**
Fifth Schedule	Scheduled Areas in **10 states** outside the Sixth-Schedule tribal-area scheme
Sixth Schedule	Tribal areas — **Assam, Meghalaya, Tripura, Mizoram**

MAINS ANGLE

STUDY LINK

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → Snapshot

HIGH

Foundation · Core idea

GS-II Indian Polity

INTRO & ORIGIN

Art 244 gives a **special administration** for tribal regions. The **Fifth Schedule** (protective, President/ Governor-driven, advisory TAC) covers scheduled areas in most states; the **Sixth Schedule** gives **greater autonomy** via elected **Autonomous District Councils** in the four north-eastern states.

Foundation learning layer: concepts → constitutional detail → UPSC application.

CORE IDEA: RECALL MAP

Core idea

V

Dimension 1 Art 244 gives a special administration for tribal regions. The Fifth Schedule (protective, President/ Governor-driven, advisory TAC) covers scheduled	**Dimension 2** □ Sixth Schedule = "A-M-T-M" — Assam, Meghalaya, Tripura, Mizoram.
Dimension 3 □ 5th = advisory (TAC) · 6th = self-governing district/regional councils.	**Dimension 4** The ordinary Sixth-Schedule model is 26 elected + 4 nominated, but special constitutional

STATIC THEORY

- □ **Sixth Schedule = "A-M-T-M"** — **A**ssam, **M**eghalaya, **T**ripura, **M**izoram.

- □ **5th = advisory (TAC) · 6th = self-governing district/regional councils**.

- The ordinary Sixth-Schedule model is 26 elected + 4 nominated, but special constitutional

- amendments create exceptions such as the Bodoland Territorial Council.

MEMORY HOOK

Sixth Schedule = "A-M-T-M" — Assam, Meghalaya, Tripura, Mizoram. | 5th = advisory (TAC) · 6th = self-governing district/regional councils.

MAINS ANGLE

STUDY LINK

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → Core idea

HIGH

Foundation · Must-Know Facts

GS-II Indian Polity

INTRO & ORIGIN

□ **Fifth Schedule:** President declares scheduled areas; Governor sends **annual report**; **Tribes Advisory Council** (not more than 20 members; as nearly as may be, three-fourths are ST representatives in the Assembly, with a shortfall rule) advises.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS: RECALL MAP

Must-Know Facts

V

Dimension 1 Fifth Schedule: President declares scheduled areas; Governor sends annual report; Tribes Advisory Council (not more than 20 members; as nearly as ma	**Dimension 2** Sixth Schedule: ordinarily an Autonomous District Council has up to 30
Dimension 3 members (26 elected + 4 nominated) and elected members serve 5 years; the Bodoland Territorial Council has a special 46-member design under the 2003 a	**Dimension 4** Commissions on scheduled areas: Dhebar (1960), Bhuria (2002).

STATIC THEORY

- **Sixth Schedule:** ordinarily an Autonomous District Council has **up to 30

- members (26 elected + 4 nominated) **and elected members serve 5 years; the Bodoland Territorial Council has a special** 46-member** design under the 2003 amendment. Councils legislate on specified land, forest and customary matters, subject to gubernatorial assent.

- Commissions on scheduled areas: **Dhebar (1960)**, **Bhuria (2002)**.

- **Art 244A** — autonomous state within Assam.

MUST-KNOW FACTS

1. Fifth Schedule: President declares scheduled areas; Governor sends **annual report**; **Tribes Advisory Council** (not more than 20 members; as nearly as may be, three-fourths are ST representatives in the Assembly, with a shortfall rule) advises.

2. Sixth Schedule: ordinarily an Autonomous District Council has **up to 30

3. Commissions on scheduled areas: **Dhebar (1960)**, **Bhuria (2002)**.

4. Art 244A — autonomous state within Assam.

MAINS ANGLE

STUDY LINK

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → Must-Know Facts

HIGH

Foundation · Current link

GS-II Indian Polity

NEWS TRIGGER

Ladakh's demand for Sixth Schedule status is a major live issue; **PESA (Fifth Schedule areas)** and the **Forest Rights Act** shape tribal Gram Sabha empowerment.

INTRO & ORIGIN

Exam-ready treatment of Current link.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK
Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → □ Current link

HIGH

Foundation · Answer architecture (10/15/20-mark support)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Answer architecture (10/15/20-mark support).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE
Purpose: make this Core file independently answer directive-sensitive GS-II questions and every routed Prelims demand on Art 244, the Fifth and Sixth Schedules, PESA, the Forest Rights Act and tribal safeguards — without opening Advanced. Distinguish Constitution/Schedule text from statute (PESA, FRA) from judicial interpretation (Samatha) from a dated current position (Ladakh's demand).

STUDY LINK
Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → Answer architecture (10/15/20-mark support)

HIGH

Foundation · 5.1 Demand and directive map

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Demand family	Typical directive signals	Answer spine to use
Fifth vs Sixth Schedule	"compare the two models", "which protects tribes better", Examine	Art 244 → Fifth (protective/advisory) → Sixth (self-governing councils) → verdict
Tribal self-governance	"PESA and the Gram Sabha", "self-rule", Discuss	Art 244M-exclusion → PESA devolutions → FRA rights → implementation gap
Governor's special role	"special responsibility remains dormant", Critically examine	Fifth-Schedule powers → under-use → TAC weakness → reform
Land alienation & mining	"protecting tribal land", *Samatha*, Analyse	Fifth-Schedule land-transfer bar → *Samatha* → PESA consent → enforcement gap
Scheduling & ST status	"how are areas/tribes notified", Explain	President (areas, Art 244) + President/Parliament (STs, Art 342) → criteria → hierarchy

MAINS ANGLE

STUDY LINK
Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → 5.1 Demand and directive map

HIGH

Foundation · 5.2 Qualified thesis options

GS-II Indian Polity

INTRO & ORIGIN

The Fifth and Sixth Schedules are two different answers to the same problem: the Fifth protects tribes through the Governor and the Centre, while the Sixth empowers them through elected councils — protection versus self-government.

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.2 QUALIFIED THESIS OPTIONS: RECALL MAP

5.2 Qualified thesis options

V

Dimension 1 The Fifth and Sixth Schedules are two different answers to the same problem: the Fifth protects tribes through the Governor and the Centre, while the	**Dimension 2** India's tribal-governance architecture is constitutionally rich but administratively dormant: the Governor's special powers, the Tribes Advisory Counc
Dimension 3 PESA and the Forest Rights Act converted the Fifth Schedule's protective intent into positive tribal rights, but their promise is limited by contested	

STATIC THEORY

- India's tribal-governance architecture is constitutionally rich but administratively dormant: the Governor's special powers, the Tribes Advisory Council and PESA's Gram Sabha are strong on paper and weak in practice.

- PESA and the Forest Rights Act converted the Fifth Schedule's protective intent into positive tribal rights, but their promise is limited by contested land-transfer enforcement and under-devolution.

MAINS ANGLE

STUDY LINK

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → 5.2 Qualified thesis options

HIGH

Foundation · 5.3 Mark-scaled structures

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Marks	Architecture	Evidence load
10	Thesis → Fifth/Sixth distinction or PESA → one limitation → verdict	3 units, at least one Schedule/Article
15	Thesis → Art 244 scheme → Fifth vs Sixth on named powers → PESA/FRA/*Samatha* → verdict	5–6 units
20	Thesis → both Schedules in detail → rights layer (PESA/FRA) → implementation critique → extension debate → graded verdict	6–8 units + a "protection vs self-government" paragraph

MAINS ANGLE

STUDY LINK
Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → 5.3 Mark-scaled structures

HIGH

Foundation · 5.4 Bank A — Fifth Schedule architecture (Scheduled Areas)

GS-II Indian Polity

INTRO & ORIGIN

Claim: Scheduled Areas are declared centrally, not by the State. → **Evidence: Art 244 + Fifth Schedule** — the **President** declares/alters/rescinds a Scheduled Area in consultation with the Governor; **10 States** have them (AP, Telangana, Chhattisgarh, Gujarat, HP, Jharkhand, MP, Maharashtra, Odisha, Rajasthan). → **Significance:** the Union retains a supervisory stake in tribal administration. → **Caution:** □ Scheduled Areas exist only outside the four Sixth-Schedule States.

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.4 BANK A — FIFTH SCHEDULE ARCHITECTURE (SCHEDULED AREAS): RECALL MAP

5.4 Bank A — Fifth Schedule architecture (Scheduled Areas)

V

Dimension 1 Claim: Scheduled Areas are declared centrally, not by the State. → Evidence: Art 244 + Fifth Schedule — the President declares/alters/rescinds a Sched	**Dimension 2** Claim: The State administers, but under a Union check. → Evidence: the State's executive power extends to Scheduled Areas, but the Union's executive p
Dimension 3 Claim: The Governor holds special legislative-modification and regulation powers. → Evidence: the Governor may direct that a Central or State Act does	**Dimension 4** Claim: Consultation and finance are institutionalised. → Evidence: the Tribes Advisory Council (20 members, 3/4 ST MLAs) in every Fifth-Schedule State

STATIC THEORY

- **Claim:** The State administers, but under a Union check. → **Evidence:** the State's executive power extends to Scheduled Areas, **but the Union's executive power extends to giving directions to the State** on their administration, and the **Governor sends an annual report** to the President. → **Significance:** a built-in Union-takeover-by-direction mechanism short of emergency. → **Caution:** □ this is the exact point on "executive power and Union takeover" — the Union directs; it does not automatically administer.

- **Claim:** The Governor holds special legislative-modification and regulation powers. → **Evidence:** the Governor may direct that a Central or State Act **does not apply, or applies with modifications**, to a Scheduled Area, and may make **regulations** prohibiting/restricting **transfer of tribal land** and regulating **money-lending** — all needing the **President's assent**. → **Significance:** a protective shield over tribal land and credit. → **Caution:** □ these regulations need the **President's** assent, not the Governor's own.

- **Claim:** Consultation and finance are institutionalised. → **Evidence:** the **Tribes Advisory Council (20 members, 3/4 ST MLAs)** in every Fifth-Schedule State; **Art 275(1)** grants-in-aid from the Consolidated Fund of India for tribal welfare and raising Scheduled-Area administration; commissions under the Schedule (**Dhebar 1960**, **Bhuria 2002**). → **Significance:** advisory voice plus a dedicated funding route. → **Caution:** □ the TAC is **advisory only** — it does not legislate.

MUST-KNOW FACTS

1. Claim: Scheduled Areas are declared centrally, not by the State. → **Evidence: Art 244 + Fifth Schedule** — the **President** declares/alters/rescinds a Scheduled Area in consultation with the Governor; **10 States** have them (AP, Telangana, Chhattisgarh, Gujarat, HP, Jharkhand, MP, Maharashtra, Odisha, Rajasthan). → **Significance:** the Union retains a supervisory stake in tribal administration. → **Caution:** Scheduled Areas exist only outside the four Sixth-Schedule States.

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3. Claim: The Governor holds special legislative-modification and regulation powers. → **Evidence:** the Governor may direct that a Central or State Act **does not apply, or applies with modifications**, to a Scheduled Area, and may make **regulations** prohibiting/restricting **transfer of tribal land** and regulating **money-lending** — all needing the **President's assent**. → **Significance:** a protective shield over tribal land and credit. → **Caution:** these regulations need the **President's** assent, not the Governor's own.

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MAINS ANGLE

STUDY LINK

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → 5.4 Bank A — Fifth Schedule architecture (Scheduled Areas)

HIGH

Foundation · 5.5 Bank B — Sixth Schedule architecture (Tribal Areas)

GS-II Indian Polity

INTRO & ORIGIN

Claim: Tribal areas in the north-east get elected self-government. → **Evidence: Art 244 + Sixth Schedule** — tribal areas of **Assam, Meghalaya, Tripura, Mizoram** constituted as **autonomous districts** (and **autonomous regions** where tribes differ), the **Governor** organising/reorganising them. → **Significance:** genuine devolved government, not mere protection. → **Caution:** □ the **Governor** organises districts here; the **President** declares Scheduled Areas under the Fifth Schedule — do not swap.

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.5 BANK B — SIXTH SCHEDULE ARCHITECTURE (TRIBAL AREAS): RECALL MAP

5.5 Bank B — Sixth Schedule architecture (Tribal Areas)

V

Dimension 1 Claim: Tribal areas in the north-east get elected self-government. → Evidence: Art 244 + Sixth Schedule — tribal areas of Assam, Meghalaya, Tripura, M	**Dimension 2** Claim: District Councils legislate, adjudicate and tax. → Evidence: an Autonomous District Council (ordinarily up to 30 — 26 elected + 4 nominated, fi
Dimension 3 Claim: Assam has an additional autonomy route. → Evidence: Art 244A permits an autonomous State within Assam with its own legislature/Council of Minis	

STATIC THEORY

- **Claim:** District Councils legislate, adjudicate and tax. → **Evidence:** an **Autonomous District Council** (ordinarily up to **30** — 26 elected + 4 nominated, five-year term; **Bodoland Territorial Council** a special **46-member** design) legislates on **land, forests, canal water, shifting cultivation, inheritance, marriage/divorce and social customs** (Governor's assent), constitutes **village councils/courts**, and levies **land revenue and specified taxes** (professions, trades, animals, vehicles, markets, tolls). → **Significance:** legislative + judicial + fiscal autonomy in one body. → **Caution:** □ The Sixth Schedule contains State-specific rules for whether parliamentary/State laws apply, do not apply, or apply with exceptions/modifications; there is no single blanket non-application rule.

- **Claim:** Assam has an additional autonomy route. → **Evidence: Art 244A** permits an **autonomous State within Assam** with its own legislature/Council of Ministers. → **Significance:** the deepest constitutional autonomy short of statehood. → **Caution:** □ Art 244A is specific to **Assam**.

MUST-KNOW FACTS

1. Claim: Tribal areas in the north-east get elected self-government. → **Evidence: Art 244 + Sixth Schedule** — tribal areas of **Assam, Meghalaya, Tripura, Mizoram** constituted as **autonomous districts** (and **autonomous regions** where tribes differ), the **Governor** organising/reorganising them. → **Significance:** genuine devolved government, not mere protection. → **Caution:** the **Governor** organises districts here; the **President** declares Scheduled Areas under the Fifth Schedule — do not swap.

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MAINS ANGLE

STUDY LINK

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → 5.5 Bank B — Sixth Schedule architecture (Tribal Areas)

HIGH

Foundation · 5.6 Bank C — The rights layer: PESA, FRA and Samatha

GS-II Indian Polity

INTRO & ORIGIN

Claim: PESA extends self-rule to Fifth-Schedule Gram Sabhas. → **Evidence: PESA 1996** empowers the **Gram Sabha** to approve local development plans, identify beneficiaries, **recommend (mandatorily) grant of minor-mineral prospecting/mining leases**, be **consulted before land acquisition and resettlement**, manage **minor forest produce**, prevent and restore **tribal land alienation**, control **money-lending** and village markets. → **Significance:** converts protection into participatory power. → **Caution:** □ PESA covers **Fifth**, not Sixth, Schedule areas; □□ implementation lags the statute.

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.6 BANK C — THE RIGHTS LAYER: PESA, FRA AND SAMATHA: RECALL MAP

5.6 Bank C — The rights layer: PESA, FRA and Samatha

V

Dimension 1 Claim: PESA extends self-rule to Fifth-Schedule Gram Sabhas. → Evidence: PESA 1996 empowers the Gram Sabha to approve local development plans, identif	**Dimension 2** Claim: The Forest Rights Act is the companion rights statute. → Evidence: the Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of F
Dimension 3 Claim: Courts have barred alienation of Scheduled-Area land to non-tribals. → Evidence: □ Samatha v. State of Andhra Pradesh (1997) held that transfer	

STATIC THEORY

- **Claim:** The Forest Rights Act is the companion rights statute. → **Evidence:** the **Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act 2006** recognises individual and community forest rights and vests the **Gram Sabha** with authority to initiate and verify claims. → **Significance:** statutory tenure security over forest land and produce. → **Caution:** □□ recognition of community rights remains uneven in practice.

- **Claim:** Courts have barred alienation of Scheduled-Area land to non-tribals. → **Evidence:** □ *Samatha v. State of Andhra Pradesh* (1997) held that transfer of land in Scheduled Areas, **including the grant of mining leases to non-tribals and private companies, is barred**; such leases may go to the State, its instrumentalities or **cooperatives of tribals**. → **Significance:** a judicial reinforcement of the land-transfer prohibition. → **Caution:** □□ *Samatha*'s reach beyond Andhra Pradesh has been debated — state it as the Scheduled-Areas mining-lease proposition, not as settled uniformly nationwide.

MUST-KNOW FACTS

1. Claim: PESA extends self-rule to Fifth-Schedule Gram Sabhas. → **Evidence: PESA 1996** empowers the **Gram Sabha** to approve local development plans, identify beneficiaries, **recommend (mandatorily) grant of minor-mineral prospecting/mining leases**, be **consulted before land acquisition and resettlement**, manage **minor forest produce**, prevent and restore **tribal land alienation**, control **money-lending** and village markets. → **Significance:** converts protection into participatory power. → **Caution:** PESA covers **Fifth**, not Sixth, Schedule areas; □□ implementation lags the statute.

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MAINS ANGLE

STUDY LINK
Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → 5.6 Bank C — The rights layer: PESA, FRA and Samatha

HIGH

Foundation · 5.7 Mechanism, institutional incentives and consequences

GS-II Indian Polity

INTRO & ORIGIN

□□ **Protection vs empowerment logic:** the Fifth Schedule keeps ultimate control with the Governor and Centre (annual report, directions, President's-assent regulations), while the Sixth Schedule vests power in elected councils — different theories of safeguarding tribes; the Governor's Fifth-Schedule powers depend on his own initiative and State cooperation, so without a duty to act the land-transfer and law-modification powers are rarely used.

Foundation learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- □□ **PESA's consent as leverage:** the mandatory Gram-Sabha recommendation for minor-mineral leases and consultation before acquisition give tribes a veto-like lever — where enforced, it changes project outcomes; where bypassed, it fuels conflict and displacement disputes.

MAINS ANGLE

STUDY LINK
Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → 5.7 Mechanism, institutional incentives and consequences

HIGH

Foundation · 5.8 Criticism, counter-argument, State variation and implementation constraints

GS-II Indian Polity

INTRO & ORIGIN

Dormancy critique: □□ the Governor's Fifth-Schedule powers and the TAC are widely described as under-used; PESA rules were delayed for years in several States.

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.8 CRITICISM, COUNTER-ARGUMENT, STATE VARIATION AND IMPLEMENTATION CONSTRAINTS: RECALL MAP

5.8 Criticism, counter-argument, State variation and implementation constraints

V

Dimension 1 Dormancy critique: □□ the Governor's Fifth-Schedule powers and the TAC are widely described as under-used; PESA rules were delayed for years in severa	**Dimension 2** Counter (real safeguards): □□ Samatha, PESA's differentiated Gram-Sabha approval, consultation and recommendation powers and FRA community rights show
Dimension 3 Fifth vs Sixth variation: □□ Sixth-Schedule councils genuinely legislate and tax, whereas Fifth-Schedule bodies only advise — autonomy is unequal by d	**Dimension 4** Implementation constraints: □□ delayed PESA State rules, weak TACs, gubernatorial inaction, contested land-transfer enforcement, and pending demands (

STATIC THEORY

- **Counter (real safeguards):** □□ *Samatha*, PESA's differentiated Gram-Sabha approval, consultation and recommendation powers and FRA community rights show the framework can deliver where courts and Gram Sabhas are active.

- **Fifth vs Sixth variation:** □□ Sixth-Schedule councils genuinely legislate and tax, whereas Fifth-Schedule bodies only advise — autonomy is unequal by design; within the Sixth Schedule, Bodoland's 46-member council is a special case.

- **Implementation constraints:** □□ delayed PESA State rules, weak TACs, gubernatorial inaction, contested land-transfer enforcement, and pending demands (Ladakh's Sixth-Schedule agitation, new autonomous-council demands in Assam).

MAINS ANGLE

STUDY LINK
Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → 5.8 Criticism, counter-argument, State variation and implementation constraints

HIGH

Foundation · 5.9 Verdict scaffolds

GS-II Indian Polity

INTRO & ORIGIN

Comparison verdict: "The Sixth Schedule gives tribes a government; the Fifth Schedule gives them a guardian — which is why regions seeking real self-rule press for the Sixth."

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.9 VERDICT SCAFFOLDS: RECALL MAP

5.9 Verdict scaffolds

V

Dimension 1 Comparison verdict: "The Sixth Schedule gives tribes a government; the Fifth Schedule gives them a guardian — which is why regions seeking real self-r	**Dimension 2** Implementation verdict: "India's tribal-governance failure is not one of design but of use: the Governor's powers, the Tribes Advisory Council and PES
Dimension 3 Rights verdict: "Samatha, PESA and the Forest Rights Act together turned the Fifth Schedule's protective promise into enforceable tribal rights, but o	

STATIC THEORY

- **Implementation verdict:** "India's tribal-governance failure is not one of design but of use: the Governor's powers, the Tribes Advisory Council and PESA's Gram Sabha are strong instruments left largely idle."

- **Rights verdict:** "*Samatha*, PESA and the Forest Rights Act together turned the Fifth Schedule's protective promise into enforceable tribal rights, but only where a Gram Sabha or a court insists on them."

MAINS ANGLE

STUDY LINK
Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → 5.9 Verdict scaffolds

HIGH

Foundation · 5.10 Prelims close-option distinctions (answers every routed objective demand)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Routed demand	Correct discrimination
SC/ST safeguards, schedules, taxation, local representation (2026 Q57)	□ Safeguards run through **Art 244 + Fifth/Sixth Schedules**, **Art 275(1)** grants, reservation of seats (**Art 330/332** legislatures; **Art 243D/243T** local bodies), and the **Art 338/338A** Commissions; **taxation power** belongs to **Sixth-Schedule District Councils** (land revenue + specified taxes), **not** to Fifth-Schedule bodies.
Governor recognising/declaring a Scheduled Tribe (2024 Q84)	□ The **Governor does NOT notify Scheduled Tribes**; under **Art 342** the **President** specifies STs by public notification (consulting the Governor for a State) and **Parliament** may include/exclude by law. The Governor organises Sixth-Schedule districts, not ST lists.
Fifth-Schedule executive power and Union takeover (2025 Q56)	□ The **State's** executive power extends to a Scheduled Area, **but the Union's executive power extends to giving directions to the State** on its administration; the **Governor reports annually** to the President — direction, not automatic administration.
Schedule protecting tribal land from private transfers (2019 Q50)	□ The **Fifth Schedule** — the Governor may make regulations prohibiting/restricting **transfer of land** by or among Scheduled Tribes in Scheduled Areas (President's assent); reinforced by *Samatha* (1997).
Fifth-Schedule consequences for tribal areas (2022 Q73)	□ President declares the area; State administers under **Governor's special responsibility** (annual report, Centre's directions), a **TAC (20 members, 3/4 ST MLAs)**, law-modification and land/money-lending regulation powers. Note: Fifth-Schedule areas are **"Scheduled Areas"**, distinct from Sixth-Schedule **"tribal areas."**
Scheduled-Areas notification and hierarchy (2023 Q39)	□ Notified by **Presidential order** (consulting the Governor); Dhebar criteria — **tribal preponderance, compactness/viable size, underdevelopment, marked economic disparity**; hierarchy: President declares → Governor (special responsibility) → State administration, with Union directions.

MAINS ANGLE

STUDY LINK

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → 5.10 Prelims close-option distinctions (answers every routed objective demand)

HIGH

Foundation · 5.11 Factual-risk and current-status controls

GS-II Indian Polity

NEWS TRIGGER

 Art 244 (Part X); Fifth Schedule = Scheduled Areas in **10 States**; Sixth Schedule = tribal areas in **Assam, Meghalaya, Tripura, Mizoram**; **Art 244A** = autonomous State within **Assam**. TAC = **20 members, 3/4 ST MLAs**; Sixth-Schedule District Council = up to **30** (26 elected + 4 nominated); **Bodoland = 46** (special); commissions **Dhebar 1960**, **Bhuria 2002**. **ST notification = President under Art 342 + Parliament**, **not** the Governor; **Scheduled-Area declaration = President** under the Fifth Schedule; Fifth-Schedule land/money-lending **regulations need the President's assent**, Sixth-Schedule council laws need the **Governor's** assent.

INTRO & ORIGIN

 PESA 1996 = Fifth Schedule; **FRA 2006** is the companion rights statute; *Samatha* (1997) bars Scheduled-Area land/mining-lease transfer to non-tribals (□□ nationwide reach debated); **Ladakh's Sixth-Schedule demand** is a live agitation, not a granted status — verify before asserting any change.

Foundation learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- less than !-- BEGIN GENERATED PYQ INTEGRATION: 2026 -→

MUST-KNOW FACTS

1. PESA 1996 = Fifth Schedule; **FRA 2006** is the companion rights statute; *Samatha* (1997) bars Scheduled-Area land/mining-lease transfer to non-tribals (□□ nationwide reach debated); **Ladakh's Sixth-Schedule demand** is a live agitation, not a granted status — verify before asserting any change.

MAINS ANGLE

STUDY LINK

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → 5.11 Factual-risk and current-status controls

HIGH

Foundation · 2026 PYQ Integration

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Year	Paper	Q	PYQ demand (neutral rendering)	Directive / format	Source status	Owner requirement
2026	Prelims GS-I	57	Constitutional safeguards, schedules, taxation, and local representation for SCs and STs	Objective question; provisional 2026 Set-A key present locally, answer not inferred	Provisional 2026 Set-A key present locally (Ans-2026-GS1-Provisional); key is provisional - no answer letter recorded or inferred here	Cover the named fact/concept and its likely statement-level distinctions.

MAINS ANGLE

STUDY LINK
Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → 2026 PYQ Integration

HIGH

Foundation · 2026 PYQ Integration

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of 2026 PYQ Integration.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Status: *2026 question-level PYQ demand is integrated into this owner.* ***Provenance:*** *Audited local official-paper routing ledgers: _PYQ-ROUTING-PRELIMS-2026.md.* ***Answer-key rule:*** *The 2026 Prelims and CSAT Set-A keys held locally are* ***provisional****; no option or answer is recorded or inferred in this integration.* ***Year represented:*** *2026* ***Paper(s):*** *Prelims GS-I* ***Routed question demands:*** *1*

STUDY LINK
Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → 2026 PYQ Integration

HIGH

Foundation · What this owner must now support

GS-II Indian Polity

INTRO & ORIGIN

Constitutional safeguards, schedules, taxation, and local representation for SCs and STs

Foundation learning layer: concepts → constitutional detail → UPSC application.

WHAT THIS OWNER MUST NOW SUPPORT: RECALL MAP

What this owner must now support

V

Dimension 1 Constitutional safeguards, schedules, taxation, and local representation for SCs and STs	**Dimension 2** This block integrates the 2026 examinable demand and paper metadata. It is kept separate from the 2018-2023 and 2024-2025 blocks and does not convert
Dimension 3 less than !-- END GENERATED PYQ INTEGRATION: 2026 -⟶	**Dimension 4** less than !-- BEGIN GENERATED PYQ INTEGRATION: 2024-2025 -⟶

STATIC THEORY

- This block integrates the 2026 examinable demand and paper metadata. It is kept separate from the 2018-2023 and 2024-2025 blocks and does not convert a provisionally-keyed, answer-free objective question into a solved answer.

- less than !-- END GENERATED PYQ INTEGRATION: 2026 -⟶

- less than !-- BEGIN GENERATED PYQ INTEGRATION: 2024-2025 -⟶

MAINS ANGLE

STUDY LINK

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → What this owner must now support

HIGH

Foundation · Recent PYQ Integration (2024-2025)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Year	Paper	Q	PYQ demand (neutral rendering)	Directive / format	Source status	Owner requirement
2024	Prelims GS-I	84	Governor recognising/declaring a Scheduled Tribe	Objective question; official Set-A key available locally, answer not inferred	Key available locally (official Set-A answer key present); answer not recorded here	Cover the named fact/concept and its likely statement-level distinctions.
2025	Prelims GS-I	56	Fifth Schedule Scheduled Area - executive power and Union takeover	Objective question; official Set-A key available locally, answer not inferred	Key available locally (official Set-A answer key present); answer not recorded here	Cover the named fact/concept and its likely statement-level distinctions.

MAINS ANGLE

STUDY LINK
Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → Recent PYQ Integration (2024-2025)

HIGH

Foundation · Recent PYQ Integration (2024-2025)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Recent PYQ Integration (2024-2025).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE
Status: *2024-2025 question-level PYQ demand is integrated into this owner.* ***Provenance:*** *Audited local official-paper routing ledgers: _PYQ-ROUTING-PRELIMS-2024-2025.md.* ***Answer-key rule:*** *The official 2024-2025 Prelims Set-A keys are present in the repository and CSAT Set-A keys are supplied; even so, no option or answer is recorded or inferred in this integration.* ***Years represented:*** *2024, 2025* ***Paper(s):*** *Prelims GS-I* ***Routed question demands:*** *2*

STUDY LINK
Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → Recent PYQ Integration (2024-2025)

HIGH

Foundation · What this owner must now support

GS-II Indian Polity

INTRO & ORIGIN

Governor recognising/declaring a Scheduled Tribe

Foundation learning layer: concepts → constitutional detail → UPSC application.

WHAT THIS OWNER MUST NOW SUPPORT: RECALL MAP

What this owner must now support

V

Dimension 1 Governor recognising/declaring a Scheduled Tribe	**Dimension 2** Fifth Schedule Scheduled Area - executive power and Union takeover
Dimension 3 This block integrates the 2024-2025 examinable demand and paper metadata. It is kept separate from the 2018-2023 block and does not convert an unkeyed	**Dimension 4** less than !-- END GENERATED PYQ INTEGRATION: 2024-2025 -—›

STATIC THEORY

- Fifth Schedule Scheduled Area - executive power and Union takeover

- This block integrates the 2024-2025 examinable demand and paper metadata. It is kept separate from the 2018-2023 block and does not convert an unkeyed/answer-free objective question into a solved answer.

- less than !-- END GENERATED PYQ INTEGRATION: 2024-2025 -—›

- less than !-- BEGIN GENERATED PYQ INTEGRATION: 2018-2023 -—›

MAINS ANGLE

STUDY LINK
Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → What this owner must now support

HIGH

Foundation · Historical PYQ Integration (2018-2023)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Year	Paper	Q	PYQ demand (neutral rendering)	Directive / format	Source status	Owner requirement
2019	Prelims GS-I	50	Schedule protecting tribal land from private transfers	Objective question; official key unavailable locally	Routed; key unavailable locally	Cover the named fact/concept and its likely statement-level distinctions.
2022	Prelims GS-I	73	Fifth Schedule of Constitution c onsequences for tribal areas	Objective question; official key unavailable locally	Routed; key unavailable locally	Cover the named fact/concept and its likely statement-level distinctions.
2023	Prelims GS-I	39	Scheduled Areas notification and administr ative hierarchy India	Objective question; official key unavailable locally	Routed; key unavailable locally	Cover the named fact/concept and its likely statement-level distinctions.

MAINS ANGLE

STUDY LINK
Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → Historical PYQ Integration (2018-2023)

HIGH

Foundation · Historical PYQ Integration (2018-2023)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Historical PYQ Integration (2018-2023).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Status: *Question-level PYQ demand is integrated into this owner.* ***Provenance:*** *Audited local official-paper routing ledgers: _PYQ-ROUTING-PRELIMS-2018-2023.md.* ***Answer-key rule:*** *The official 2018-2023 Prelims/CSAT keys are not held locally; no option or answer has been inferred.* ***Years represented:*** *2019, 2022, 2023* ***Paper(s):*** *Prelims GS-I* ***Routed question demands:*** *3*

STUDY LINK

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → Historical PYQ Integration (2018-2023)

HIGH

Foundation · What this owner must now support

GS-II Indian Polity

INTRO & ORIGIN

Schedule protecting tribal land from private transfers

Foundation learning layer: concepts → constitutional detail → UPSC application.

WHAT THIS OWNER MUST NOW SUPPORT: RECALL MAP

What this owner must now support

V

Dimension 1 Schedule protecting tribal land from private transfers	**Dimension 2** Fifth Schedule of Constitution consequences for tribal areas
Dimension 3 Scheduled Areas notification and administrative hierarchy India	**Dimension 4** The table integrates the examinable demand and paper metadata. It does not turn an unkeyed objective question into a solved answer, and it does not cl

STATIC THEORY

- Fifth Schedule of Constitution consequences for tribal areas

- Scheduled Areas notification and administrative hierarchy India

- The table integrates the examinable demand and paper metadata. It does not turn an unkeyed objective question into a solved answer, and it does not claim that lexical presence alone proves full conceptual sufficiency.

- less than !-- END GENERATED PYQ INTEGRATION: 2018-2023 -→

MAINS ANGLE

STUDY LINK

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → What this owner must now support

HIGH

Foundation · Semantic-completeness ownership and PYQ control

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Semantic-completeness ownership and PYQ control.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Constitutional map: *Article 244(1) applies the Fifth Schedule to Scheduled Areas and Scheduled Tribes in States other than Assam, Meghalaya, Tripura and Mizoram; Article 244(2) applies the Sixth Schedule to tribal areas in those four States. Article 244A is a separate parliamentary route for an autonomous State within Assam.* ***Fifth-Schedule territory:*** *the President declares, enlarges, diminishes, alters or rescinds a Scheduled Area by order after the constitutional consultation route. Official Ministry of Tribal Affairs material continues to list Scheduled Areas in ten States.* ***Fifth-Schedule administration:*** *State executive power extends to Scheduled Areas; the Governor reports annually, or whenever required, to the President; and Union executive power extends to directions regarding administration.* ***TAC precision:*** *a Tribes Advisory Council has not more than twenty members. As nearly as may be, three-fourths are representatives of Scheduled Tribes in the State Legislative Assembly, with the Schedule's shortfall rule. It advises on welfare and advancement matters referred by the Governor; it does not legislate.* ***Governor's paragraph 5 power:*** *by public notification the Governor may direct that an Act does not apply, or applies with exceptions/modifications, and may make peace-and-good-government regulations on tribal land transfer, land allotment and money-lending. Regulations require presidential assent and, where a TAC exists, consultation with it.* ***Sixth-Schedule institutions:*** *the Governor organises autonomous districts and regions. District and Regional Councils exercise textually specified legislative, judicial, executive and revenue powers; council laws requiring assent, State-law application and parliamentary-law application remain paragraph- and State-specific rather than one blanket rule.* ***Current council map:*** *an official MHA Lok Sabha answer dated 4 August 2026 lists ten Sixth-Schedule Autonomous District Councils: three in Assam, three in Meghalaya, three in Mizoram and one in Tripura. Special council designs, including Bodoland, must not be replaced by the ordinary maximum-thirty model.* ***PESA verbs:*** *section 4 of the PESA Act, 1996 distinguishes Gram Sabha approval of plans/programmes/projects, beneficiary identification, utilisation certification, consultation before land acquisition and rehabilitation, and mandatory prior recommendation for specified minor-mineral licences, leases and concessions. Ownership of minor forest produce and specified control powers do not create a universal project veto.* ***FRA and judgments:*** *the Forest Rights Act, 2006 has its own rights-recognition process initiated through the Gram Sabha. Samatha (1997) is used within its Andhra Pradesh Scheduled-Area land-transfer setting. Orissa Mining Corporation (2013) required Gram Sabha determination of specified FRA-linked cultural and religious claims at Niyamgiri while leaving the final Stage-II decision with MoEF.* ***Ownership/PYQ firewall:*** *Topic 23 owns Panchayat structure and the PESA local-government bridge; Topic 22 owns Articles 371-371J; Topic 31 owns the National Commissions; Topic 53 owns the wider special-provisions-for-classes architecture. Direct and routed 2019-2026 Scheduled-Area demands retain their official-key or answer-free status without fabricated answer letters.*

STUDY LINK

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → Semantic-completeness ownership and PYQ control

HIGH

Advanced · Core Foundation

GS-II Indian Polity

INTRO & ORIGIN

Subject: Polity · **Tier:** Advanced (exam depth) · **GS Paper:** GS-II

Advanced learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP

Core Foundation

V

Dimension 1 Subject: Polity · Tier: Advanced (exam depth) · GS Paper: GS-II	**Dimension 2** Grounded in: Indian Polity by M. Laxmikant, Ch. 41 (direct check of the local Sixth Revised Edition PDF).
Dimension 3 □ = from source book · □□ = inference / case law · □ = current affairs.	**Dimension 4** Companion: basic/Scheduled-and-Tribal-Areas.md.

STATIC THEORY

- **Grounded in:** Indian Polity by M. Laxmikant, Ch. 41 (direct check of the local Sixth Revised Edition PDF).

- □ = from source book · □□ = inference / case law · □ = current affairs.

- *Companion: basic/Scheduled-and-Tribal-Areas.md.*

MUST-KNOW FACTS

1. = from source book · □□ = inference / case law · □ = current affairs.

MAINS ANGLE

STUDY LINK

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → Core Foundation

HIGH

Advanced · THE BIG PICTURE □

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Schedule	Covers	Applies to
□ **Fifth Schedule**	Administration & control of **scheduled areas & STs**	**Any state EXCEPT** Assam, Meghalaya, Tripura, Mizoram
□ **Sixth Schedule**	Administration of **tribal areas**	The **4 NE states**: Assam, Meghalaya, Tripura, Mizoram

MAINS ANGLE

STUDY LINK
Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → THE BIG PICTURE □

HIGH

Advanced · THE BIG PICTURE □

GS-II Indian Polity

INTRO & ORIGIN

□ **Art 244 (Part X)** envisages a special administrative system for **"scheduled areas"** and **"tribal areas"**:

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- □ **10 states have Fifth Schedule Areas** (2019): AP, Telangana, Chhattisgarh, Gujarat, HP, Jharkhand, MP, Maharashtra, Odisha, Rajasthan.

MUST-KNOW FACTS

1. Art 244 (Part X) envisages a special administrative system for **"scheduled areas"** and **"tribal areas"**:

2. 10 states have Fifth Schedule Areas (2019): AP, Telangana, Chhattisgarh, Gujarat, HP, Jharkhand, MP, Maharashtra, Odisha, Rajasthan.

MAINS ANGLE

STUDY LINK
Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → THE BIG PICTURE □

HIGH

Advanced · PART A — FIFTH SCHEDULE (Administration of Scheduled Areas) □ · Part 1

GS-II Indian Polity

INTRO & ORIGIN

□ Rationale: inhabited by **aboriginals**, socially/economically backward → the normal state machinery is not fully extended and the **Centre has greater responsibility**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

PART A — FIFTH SCHEDULE (ADMINISTRATION OF SCHEDULED AREAS) □: RECALL MAP

PART A — FIFTH SCHEDULE (Administration of Scheduled Areas) □

V

Dimension 1 □ Rationale: inhabited by aboriginals, socially/economically backward → the normal state machinery is not fully extended and the Centre has greater re	**Dimension 2** □ Declaration: the President declares/alters/rescinds a scheduled area (in consultation with the
Dimension 3 Governor).	**Dimension 4** □ Executive power: state's executive power extends there, but the Governor has a special

STATIC THEORY

- □ **Declaration:** the **President** declares/alters/rescinds a scheduled area (in consultation with the

- Governor).

- □ **Executive power:** state's executive power extends there, **but the Governor has a special

- responsibility **— must send an** annual report **to the President; the** Centre can give directions** on administration.

- □ **Tribes Advisory Council (TAC):** every Fifth-Schedule state must set one up — **20 members, 3/4 being ST

- MLAs** of the state assembly.

MUST-KNOW FACTS

1. Rationale: inhabited by **aboriginals**, socially/economically backward → the normal state machinery is not fully extended and the **Centre has greater responsibility**.

2. Declaration: the **President** declares/alters/rescinds a scheduled area (in consultation with the

3. Executive power: state's executive power extends there, **but the Governor has a special

4. Tribes Advisory Council (TAC): every Fifth-Schedule state must set one up — **20 members, 3/4 being ST

MAINS ANGLE

STUDY LINK

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → PART A — FIFTH SCHEDULE (Administration of Scheduled Areas) □

HIGH

Advanced · PART A — FIFTH SCHEDULE (Administration of Scheduled Areas) □ · Part 2

GS-II Indian Polity

INTRO & ORIGIN

□ **Governor's powers:** may direct that an Act of Parliament/state legislature does **not apply** (or applies

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- with modifications) to a scheduled area; may make **regulations** (prohibit/restrict land transfer among tribals, regulate money-lending) — all such regulations need the **President's assent**.

- □ **Article 339(1) commissions:** the President was required to appoint one after ten years from commencement and may appoint further commissions; **Dhebar (1960)** and **Bhuria (2002)** are the standard examples.

MUST-KNOW FACTS

1. Governor's powers: may direct that an Act of Parliament/state legislature does **not apply** (or applies

2. Article 339(1) commissions: the President was required to appoint one after ten years from commencement and may appoint further commissions; **Dhebar (1960)** and **Bhuria (2002)** are the standard examples.

MAINS ANGLE

STUDY LINK

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → PART A — FIFTH SCHEDULE (Administration of Scheduled Areas) □

HIGH

Advanced · PART B — SIXTH SCHEDULE (Administration of Tribal Areas) □

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Feature	Detail
□ **Autonomous Districts**	Tribal areas constituted as **autonomous districts** (still within state executive authority); Governor organises/reorganises them
□ **Autonomous Regions**	Where different tribes exist within a district
□ **District Council**	Ordinary model: up to **30 members** — 4 Governor-nominated + 26 elected, 5-year elected term; **Bodoland Territorial Council is a special 46-member exception**
□ **Law-making**	Councils legislate on **land, forests, canal water, shifting cultivation, inheritance, marriage/divorce, social customs** — need Governor's assent
□ **Judicial**	Councils can constitute **village councils/courts** for tribal disputes
□ **Finance**	Assess & collect **land revenue** + specified taxes; manage schools, markets, ferries, roads
□ **Application of Acts varies**	State-specific Sixth-Schedule paragraphs govern non-application or application with exceptions/modifications; do not use one blanket rule

MAINS ANGLE

STUDY LINK

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → PART B — SIXTH SCHEDULE (Administration of Tribal Areas) □

HIGH

Advanced · PART B — SIXTH SCHEDULE (Administration of Tribal Areas) □

GS-II Indian Polity

INTRO & ORIGIN

□ For the **4 NE states** (Assam, Meghalaya, Tripura, Mizoram) whose tribes retain their own culture → given **autonomy** for self-government.

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- □ **Special Article 244A:** allows formation of an **autonomous state** within Assam (with its own legislature/CoM).

MUST-KNOW FACTS

1. For the **4 NE states** (Assam, Meghalaya, Tripura, Mizoram) whose tribes retain their own culture → given **autonomy** for self-government.

2. Special Article 244A: allows formation of an **autonomous state** within Assam (with its own legislature/CoM).

MAINS ANGLE

STUDY LINK

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → PART B — SIXTH SCHEDULE (Administration of Tribal Areas) □

HIGH

Advanced · PART C — FIFTH vs SIXTH SCHEDULE (compare) □□

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Point	Fifth Schedule	Sixth Schedule
□ Applies to	Scheduled areas in **10 states** (except the 4 NE)	Tribal areas in **4 NE states**
□ Key body	**Tribes Advisory Council** (advisory)	**Autonomous District/Regional Councils** (law-making + executive)
□ Degree of autonomy	Lower (protective; Governor/Centre-driven)	**Higher** (genuine self-government with elected councils)
□ Declares/controls	President declares; Governor reports	Governor organises districts; councils legislate

MAINS ANGLE

STUDY LINK

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → PART C — FIFTH vs SIXTH SCHEDULE (compare) □□

HIGH

Advanced · UPSC Traps

GS-II Indian Polity

INTRO & ORIGIN

Arunachal).

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- the **President** declares **scheduled areas** (Fifth Schedule).

UPSC TRAPS

WRONG: Sixth Schedule applies to all NE states

CORRECT: only **Assam, Meghalaya, Tripura, Mizoram** (not Nagaland/Manipur/

WRONG: Fifth Schedule covers the whole country

CORRECT: excludes the 4 Sixth-Schedule states.

WRONG: Tribes Advisory Council makes laws

CORRECT: it is **advisory** only; the **District Councils** (Sixth Schedule) legislate.

WRONG: District Council has 30 all-elected members

CORRECT: 26 elected + 4 nominated by the Governor.

WRONG: President declares tribal areas under the Sixth Schedule

CORRECT: the **Governor** organises autonomous districts;

WRONG: Fifth-Schedule regulations need the Governor's assent

CORRECT: they need the **President's** assent.

MAINS ANGLE

STUDY LINK

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → UPSC Traps

HIGH

Advanced · □ CA hooks

GS-II Indian Polity

NEWS TRIGGER

□ □□ **Ladakh's demand for Sixth Schedule status** (tribal-majority UT) — a major live agitation (links to Ch 22 & Ch 25). □ □□ **PESA (1996)** extends Panchayat provisions to **Fifth Schedule** areas — Gram Sabha empowerment (links to

INTRO & ORIGIN

Ch 23).

Advanced learning layer: concepts → constitutional detail → UPSC application.

□ CA HOOKS: RECALL MAP

□ CA hooks

V

Dimension 1 Ch 23).	**Dimension 2** □ □□ Forest Rights Act 2006 & tribal land alienation, mining consent, Governor's under-used special powers.
Dimension 3 □ □□ Demands for new autonomous councils (e.g., in Assam) & Bodoland accord implementation.	

STATIC THEORY

- □ □□ **Forest Rights Act 2006** & tribal land alienation, mining consent, Governor's under-used special powers.

- □ □□ Demands for **new autonomous councils** (e.g., in Assam) & Bodoland accord implementation.

MAINS ANGLE

STUDY LINK

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → □ CA hooks

HIGH

Advanced · Mains angles

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Mains angles.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Compare the Fifth and Sixth Schedules as models of tribal self-governance — which better protects tribal identity? "The Governor's special responsibility under the Fifth Schedule remains largely dormant." Examine. Should the Sixth Schedule be extended to Ladakh and other tribal regions? Discuss.

STUDY LINK

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → Mains angles

End of Register Notes - UPSC Agent / Copilot CLI